



**U.S. Customs and
Border Protection**

PUBLIC VERSION

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Re: EAPA Consolidated Case No. 8135 - Notice of Determination as to Evasion

To Mr. Taylor and the Representatives of the Above-Referenced Entities:

Pursuant to an examination of the record in Enforce and Protect Act (“EAPA”) Consolidated Case 8135, U.S. Customs and Border Protection (“CBP”) has reached a determination as to whether USASourcing Inc. (“USASourcing”) and Tradewide Inc. (“Tradewide”) (collectively “the Importers”) evaded the antidumping (“AD”) order A-570-890 on wooden bedroom furniture from the People’s Republic of China (“China”).¹ CBP determined there is substantial evidence that USASourcing and Tradewide entered covered merchandise for consumption into the customs territory of the United States through evasion, by importing into the United States Chinese-origin wooden bedroom furniture that they did not declare subject to the *Order*.

Background

Allegation and Initiation

¹ See *Notice of Amended Final Determination of Sales at Less Than Fair Value and Antidumping Duty Order: Wooden Bedroom Furniture from the People’s Republic of China*, 70 FR 329 (U.S. Department of Commerce, January 4, 2005) (“the *Order*”).

On December 19, 2024, the American Furniture Manufacturers Committee for Legal Trade (“the AFMC” or “the Alleger”) filed EAPA allegations, which were subsequently supplemented, against the Importers.² CBP acknowledged receipt of the properly filed allegations against the Importers on January 13, 2025.³

The Alleger contends that a company named Lodging Concepts Manufacturing (“LCM”) is a supplier of WBF for hotel guest rooms that issued purchase orders for underlying shipments of covered WBF from China, and that USASourcing and Tradewide appear as consignees on the bills of lading associated with LCM’s purchases from China.⁴ The Alleger notes LCM designs and sources furniture from overseas, maintains an office in China, and apparently does not have any U.S. manufacturing operations.⁵

Using Datamyne, the Alleger identified shipments of furniture from China to the United States from October 2023 through September 2024 where Tradewide was the consignee, USASourcing was the consignee, or LCM was identified in the bill of lading information regardless of consignee.⁶ The Alleger states it was able to identify the shipments associated with LCM in the publicly available ship manifest data, because “LCM” – or a project number known to be associated with LCM – appears in the “Marks & Numbers” field.⁷ The Alleger segregated specific shipments classified under an HTSUS classification other than that normally designated

² See the AFMC’s Letters, “Evasion Allegation Against USASOURCING Inc. (‘USASOURCING’), An Importer Of Wooden Bedroom Furniture From The People’s Republic Of China (A-570-890), Pursuant To The Enforce and Protect Act of 2015,” dated December 19, 2024 (“USASourcing Allegation”), and “Evasion Allegation Against TRADEWIDE INC (‘TRADEWIDE’), An Importer Of Wooden Bedroom Furniture From The People’s Republic Of China (A-570-890), Pursuant To The Enforce and Protect Act of 2015,” dated December 19, 2024 (“Tradewide Allegation”). See also the AFMC’s Letters, “Supplement to Evasion Allegations Against USASOURCING INC and TRADEWIDE INC, Importers Of Wooden Bedroom Furniture From The People’s Republic Of China (A-570-890), Pursuant To The Enforce and Protect Act of 2015,” submitted under EAPA number 8135, and dated January 6, 2025 (“Supplement to USASourcing Allegation”), and “Supplement to Evasion Allegations Against USASOURCING INC and TRADEWIDE INC, Importers Of Wooden Bedroom Furniture From The People’s Republic Of China (A-570-890), Pursuant To The Enforce and Protect Act of 2015,” submitted under EAPA number 8136, and dated January 6, 2025 (“Supplement to Tradewide Allegation”).

CBP notes that the allegations and supplements to the allegations are virtually identical to each other, as they both contain the same descriptions and evidence covering the two importers in question, and that for ease of reference, CBP makes citations to only the page numbers and attachments from USASourcing Allegation and Supplement to USASourcing Allegation.

In addition, CBP notes USASourcing and Tradewide based on various factors: both are located in Las Vegas, Nevada, their sole officers have the same listed address, and both were formed one day apart by the same registered agent. See USASourcing Allegation at 5.

³ See TRLED Official Receipt emails for EAPA 8135 and EAPA 8136, both dated January 13, 2025.

⁴ See USASourcing Allegation at 4.

⁵ *Id.*, citing Attachment 1.

⁶ *Id.* at 4, referencing Attachments 2a, 2b, and 2c, respectively. The Alleger provided additional information to describe how the bills of lading at Attachments 2a, 2b, and 2c of the allegation were identified and presented. See Supplement to USASourcing Allegation at 2.

⁷ See USASourcing Allegation at 4.

for WBF and involving consignee Tradewide⁸ that the Alleger was able to link to a specific project, as described below, which contained WBF identified as having originated from China.

The Alleger states [description of source information], and that it has [description of source information].

The Alleger provides a declaration from [name and title], in which [person] states that during the spring of 2024, [activity and location].⁹ The Alleger noted [person] was there at the invitation of the owner for the purpose of devising plans for a separate project, and [person] was permitted to take photographs of the furniture then in the process of being installed on site. According to [person], during the visit he observed the boxes containing all the guestroom furniture were clearly labelled as being supplied by LCM and “Made in China,” the boxes indicating the project number assigned by LCM to the [location and number], and that all the pieces (which included wooden beds, headboards, nightstands, chests, and wardrobes) were made from wood and were being installed into guest bedrooms.¹⁰

The Alleger observes that many of the bills of lading associated with LCM in the Datamyne shipment information also show a project number or “PO#” followed by a six-digit number beginning with “605.” Thus, even where “LCM” does not explicitly appear on the bill of lading, an entry may be reasonably linked to an LCM project number via the sequential PO#, as the Alleger shows for numerous examples extracted from Attachment 2a relating to consignee Tradewide.¹¹ In order to [source information] with specific entries, therefore, the Alleger identified in the Datamyne shipment data all bills of lading reflecting the [source information]. The resulting [items] were [determiner] dated [month and year], for shipments identified as originating from China and for which the declared consignee was identified as [company].¹²

The Alleger states these [source information] identifying the consignee as [company] can be [action].¹³ First, as indicated above, they reflect the “[number]” project number assigned by LCM for this hotel. Also, the [period and place] for the [items]¹⁴ are [period and place].¹⁵ Furthermore, based on the number of

⁸ *Id.* at 4, referencing Attachment 2d.

⁹ *Id.* at Attachment 7.

¹⁰ *Id.* at 6 and Attachment 7. The scope of the *Order* covers items such as those [person] states [determiner] observed. See, e.g., the scope of the *Order* referenced in the U.S. Department of Commerce scope ruling including in Attachment 6 of the USASourcing Allegation (“The subject merchandise includes the following items: (1) wooden beds such as loft beds, bunk beds, and other beds; (2) wooden *headboards* for beds (whether stand-alone or attached to side rails), wooden footboards for beds, wooden side rails for beds, and wooden canopies for beds; (3) night tables, *night stands*, . . .” (emphasis added)).

¹¹ *Id.* at 7-8 and Attachment 2a.

¹² *Id.* at 8 and Attachment 2d.

¹³ *Id.* at 8-9.

¹⁴ *Id.* at 9 and Attachment 2d.

¹⁵ *Id.* at 9 and Attachment 7.

rooms at the [place] and the weight of pieces observed to have been supplied by LCM, [person] estimated, in a worksheet appended to [determiner] declaration, that the total weight of the items associated with project number [number and description];¹⁶ the Alleger states this estimate was performed without [person] having knowledge of the total actual weight appearing on the [source information].¹⁷ The Alleger states [source information]

[] confirms that these entries contained the WBF at issue.¹⁸

The Alleger claims the evidence supports that the items within project number [number] that fall within the scope of the *Order*, including wooden beds, headboards, nightstands, chests, and wardrobes, entered by means of evasion. First, the Alleger states [source information]

[], and that “{i}t likely would be cost prohibitive for a company like LCM to pay duties at that rate,” and “had LCM paid antidumping duties, the company likely would have lost money on the deal.”¹⁹

Next, the Alleger notes the “container description” on each bill of lading specified that the harmonized tariff code to be used is “9403.60,” and that it is reasonable to infer, therefore, that the importer entered the merchandise using this subheading on the CF-7501 – Entry Summary. The Alleger notes that subheading 9403.50 encompasses “wooden furniture of a kind used in the bedroom,” which typically would be covered by the *Order*, whereas subheading 9403.60 encompasses “other wooden furniture,” which typically would not be covered by the *Order*, and that it stands to reason that subheading 9403.60 appeared in the shipping documents to justify entering the merchandise as a “Type 01” rather than a “Type 03” entry (so as to avoid paying antidumping duties).²⁰

Finally, the Alleger states the “container description” on each bill of lading carefully avoids referencing bedroom-type furniture and instead lists the items as “storage cabinet,” “TV panel,” or “table,” but, as discussed above, the Alleger asserts that the [source information]

[].²¹ The Alleger states that “the fact that these bedroom items were included in the shipment – but excluded from the bill of lading description – is telling.”²²

¹⁶ *Id.*

¹⁷ *Id.* at 9 and Attachment 2d.

¹⁸ *Id.* at 9. Entries properly identified as Type 01 are not subject to AD and/or CVD orders, but entries identified as Type 03 are subject to AD and/or CVD orders.

¹⁹ *Id.* at 9, citing *Wooden Bedroom Furniture from the People's Republic of China: Final Results of Antidumping Duty Administrative Review; 2022*, 89 FR 8151, 8152 (U.S. Department of Commerce, February 6, 2024) for the rate in question.

²⁰ *Id.* at 9-10.

²¹ *Id.* at 10, Attachment 2d, and Attachment 7.

²² *Id.* at 10.

In assessing the facts provided in the Allegation, CBP found the information submitted by the Alleger reasonably suggests USASourcing and Tradewide imported merchandise covered by the Order into the customs territory of the United States through evasion by misclassifying the merchandise in question.²³

Notice of Initiation of Investigation and Interim Measures

CF28s

After initiating this investigation, on February 13, 2025, CBP issued a CBP Form 28 request for information (“CF28”) to Tradewide,²⁴ and on February 18, 2025, CBP issued four CF28s to USASourcing.²⁵ In these CF-28s, CBP requested various information relating to those Importers’ POI entries, including: general company information regarding the importers, foreign suppliers, and foreign manufacturers; sales and transportation documentation relating to the transactions between foreign manufacturers, foreign suppliers, the Importers, and the Importers’ customers; and blueprints and product catalog information describing the merchandise in question.²⁶

Tradewide did not submit a response to the CF28 by the initial deadline. CBP provided Tradewide additional time to submit its response,²⁷ but Tradewide did not submit a response by that deadline, and there is no evidence that Tradewide tried to submit a response subsequent to that deadline.

On March 7, 2025, USASourcing submitted CF28 responses for each of the five entries referenced above. In those responses, USASourcing provided documentation relating to the apparent manufacturers and foreign suppliers of the merchandise in question. The descriptions of the merchandise in question on the sale transaction documentation were very general, with terms such as “[item]”, “[item]”, and “[item]”.²⁸ The bill of lading documents for two of the entries contained references to “[name]” project numbers.²⁹ USASourcing did not provide the requested sales and transportation documentation relating to its transactions with its customers for the entered merchandise, and nothing in USASourcing’s March 7, 2025 CF28 responses appeared to reference its own customers other than possibly the aforementioned references to “[name]” project numbers. In

²³ See “Initiation of Investigation for EAPA Case Numbers 8135 and 8136 (Cons. 8135),” dated February 4, 2025 (“Initiation Memo”) at 5-6.

²⁴ See the CF28 issued to Tradewide on February 13, 2025 (covering entries [number]6394 (“entry 6394”), [number]8036 (“entry 8036”), [number]8044 (“entry 8044”), [number]8713 (“entry 8713”), [number]8812 (“entry 8812”), [number]9892 (“entry 9892”), [number]2449 (“entry 2449”) and [number]8065 (“entry 8065”). See also the February 14, 2025, email from CBP to the broker representing Tradewide.

²⁵ See the four CF28s issued to USASourcing on February 18, 2025 (one covering entry [number]1209 (“entry 1209”) and entry [number]0291 (“entry 0291”), and the other three covering entries [number]2636 (“entry 2636”), [number]3965 (“entry 3965”), and [number]4807 (“entry 4807”), respectively).

²⁶ *Id.*

²⁷ See TRLED’s follow-up email to Tradewide, “re CF28 Response,” dated March 20, 2025.

²⁸ See various pages in USASourcing’s March 7, 2025, CF28 responses.

²⁹ See bill of lading pages in USASourcing’s March 7, 2025, CF28 responses for entry 1209 and entry 0291.

response to the request for “catalog” and “blueprint” information relating to the merchandise in question, USASourcing stated it does not use a catalog; it noted that “all we do is customized based on the customer design,” and that USASourcing “provide{s} the blueprints to manufacturers,” and the manufacturers “follow the dimension/materials/construction on blueprints.”³⁰

In supplemental CF28 requests for information, CBP asked USASourcing for a second time to provide various sales and transportation documentation relating to its transactions with its customers for the entered merchandise, asked it to provide the customer designs and blueprints for the merchandise in the entries in question, and asked it to explain some references in the narrative of its March 2025 CF28 responses that it made to what appears to be February 2025 submissions of information which CBP never received.³¹ USASourcing failed to submit responses to these requests.³²

Cargo Exams

On March 12, 2025, CBP conducted a cargo exam of merchandise contained in a shipment to USASourcing identified with entry number [number]7346. CBP did not observe any merchandise during that exam that appeared to be wooden bedroom furniture as described by the scope of the *Order*.³³

From February 21, 2025, through March 18, 2025, CBP officials conducted a cargo exam of merchandise contained in a shipment to Tradewide identified with entry number [number]7750.³⁴ CBP observed some boxed items with labels identifying “[name]” or “[name],” including some referencing “[item].”³⁵ CBP officials removed some items from such packaging,³⁶ and attempted to assemble them into a final completed piece of furniture.³⁷ The result was an item that could be an incomplete [item] or [item], with pre-drilled holes in wood pieces that might accommodate other pieces, such as doors.³⁸ CBP also tried to assemble other parts into what

³⁰ See the narrative response pages in each of USASourcing’s March 7, 2025, CF28 responses.

³¹ See email from CBP to the broker, dated April 4, 2025, with four accompanying CF28 documents (collectively covering the five entries in question), each dated April 3, 2025.

³² Ten days after those responses were due, USASourcing’s broker began inquiring regarding the possibility of being granted an extension of the deadline for USASourcing’s responses. However, as of 5:00 pm Eastern Time, May 2, 2025, the broker had not clarified its extension request, and neither USASourcing, nor the broker on its behalf, had submitted additional response documents. See TRLED memorandum to the file, with attached email correspondence, dated May 2, 2025.

³³ See CBP’s Memorandum, “USASourcing Cargo Exam,” dated April 3, 2025.

³⁴ See CBP’s Memorandum, “Tradewide Cargo Exam,” dated April 8, 2025 (“Tradewide Cargo Exam”). Various entry-related documentation was also provided to CBP. See CBP’s Memorandum to the File regarding Tradewide entry 7750, dated June 26, 2025. We note that in its Notice of Initiation of Investigation and Interim Measures, CBP incorrectly referred to a February 5, 2025, memorandum for this entry-related documentation, as February 5, 2025, was the date of the entry in question, not the date of a memorandum.

³⁵ See Tradewide Cargo Exam at Attachment 1.

³⁶ *Id.*

³⁷ *Id.* at Attachment 2 and Attachment 3.

³⁸ *Id.* at Attachment 4 (page 1).

appeared to be a [item] or [item], consisting of [item] and [item].³⁹ CBP could not determine if these items were fully assembled or not, due to lack of documentation or instruction in the boxes. Other items identified as “[item]” and “[item]” were also observed.⁴⁰

Analysis

Based on the information in the allegation and Tradewide’s subsequent failure to provide a response to CBP’s CF28 supports a conclusion that it has been engaging in evasion.⁴¹ As such, reasonable suspicion exists that Tradewide’s entries from China were entered through evasion. Although USASourcing did submit CF28 responses for each requested entry, it did not submit responses to supplemental CF28s, thereby failing to provide a) requested customer designs and blueprints of the imported merchandise, and b) sales and transportation documentation for its sales of the imported merchandise to its customer(s).⁴² These failures prevent CBP from obtaining a clear idea of what was actually imported into the United States, as customer designs and blueprints would presumably provide visual detail necessary for determining whether it was covered under the *Order*, as might additional documentation relating to the final sales to importer customers. Furthermore, as noted above, documents in two of USASourcing’s CF28 responses appear to refer to “[name]” projects, and, as noted in the Initiation Memo and above, the *Alleger* had demonstrated additional connections between USASourcing and Tradewide. Based on the record evidence described above, CBP determined that reasonable suspicion existed that USASourcing and Tradewide entered Chinese-origin wooden furniture that is subject to the *Order* into the United States without declaring it as covered merchandise. Therefore, CBP imposed interim measures on the Importers’ entries of wooden furniture from China pursuant to this investigation.⁴³

Post-Interim Measures

Request for Information from Importers

On May 15, 2025, CBP issued via email request for information (“RFI”) to USASourcing and to Tradewide, with responses due May 29, 2025.⁴⁴ These RFIs included questions and requests for documentation relating to the Importers’ corporate structure, accounting and financial practices, purchases and sales (including, but not limited to, specific identified entries), and sales reconciliations. Neither USASourcing nor Tradewide submitted a response by the deadline, and on the following day, CBP emailed USASourcing and Tradewide again, indicating they should

³⁹ *Id.* (page 3).

⁴⁰ *Id.* (page 2 and page 4, respectively).

⁴¹ Also, although no firm conclusion can be reached based on CBP’s cargo examination of an incoming Tradewide shipment, some of what was observed could include covered merchandise.

⁴² The supplemental request for the sales and transportation documentation for USASourcing’s sales to its customer(s) was that importer’s second opportunity to provide such information.

⁴³ See Notice of Initiation of Investigation and Interim Measures – EAPA Cons. Case 8135, dated May 12, 2025 (“NOI”).

⁴⁴ See May 15, 2025, emails from TRLED to USASourcing and Tradewide, and accompanying RFIs.

submit RFIs response by June 6, 2025.⁴⁵ Neither USASourcing nor Tradewide submitted a response by that deadline.

Starting about seven weeks after the June 6, 2025, revised RFI deadline, a representative of USASourcing began to send emails to TRLED, indicating the importer had been attempting to hire counsel to represent it during this EAPA investigation, but without requesting anything from TRLED or asking TRLED any specific questions.⁴⁶ On July 27, 2025, USASourcing sent an email to TRLED expression concern that USASourcing had received no response from CBP to the aforementioned emails.⁴⁷ On July 28, 2025, in response to that additional email from USASourcing, TRLED sent a response noting that the deadlines for submission of an RFI response had passed, but that parties to the investigation may make voluntary submissions of other factual information up until 200 days after the initiation of the investigation.⁴⁸ On July 29, 2025, USASourcing submitted an email to TRLED, acknowledging receipt of the July 28, 2025, email from TRLED, stating that “the deadline that is mentioned has passed,” and requesting that CBP “please assign a new deadline” because USASourcing “want{s} to cooperate” but is “only a small company with limited resources and funds to move quickly.”⁴⁹ TRLED rejected that request, citing USASourcing’s failure to even submit an extension request prior to the RFI deadlines, and noting “CBP must conduct this proceeding in accordance with statutory and regulatory deadlines,” and that “USASourcing’s failure to submit a timely RFI response, or even a timely RFI deadline extension request, would affect CBP’s ability to conduct a full and complete investigation, which might require the issuance of additional RFIs, planning for and conduct of verifications, issuance of verification reports, etc.”⁵⁰ However, TRLED reiterated that parties to the investigation may make voluntary submissions of other factual information up until 200 days after the initiation of the investigation.⁵¹ None of the parties to the investigation made any such voluntary submissions of factual information.

Requests for Information from Suppliers

Based on information from CBP systems, CBP also issued RFIs to two suppliers to Tradewide (Bestwood Timber Group (HK) Co. Limited (“Bestwood Timber”) and Zhejiang Sunzoom Co. Ltd./Zhejiang Sunzoom Intelligent Furnishing Co. Ltd. (“Zhejiang Sunzoom”)), and to five suppliers of USASourcing (Ningbo Wade Furniture (“Ningbo Wade”), Ningbo House Hotel Furniture Co. Ltd. (“Ningbo House”), Dongguan Tenghui Furniture Co. Ltd. (“Dongguan Tenghui”), Meicheng (Dongsheng) Hardware Furniture Co. Ltd. (“Meicheng Dongsheng”), and Zhejiang Jinqi Industrial Co. Ltd. (“Zhejiang Jinqi”)). Each RFI requested information pertaining to general company information, corporate structure, accounting/financial practices, sales, production, sales/production reconciliations, including information pertaining to a

⁴⁵ See Sept. 30, 2025, emails from TRLED to USASourcing and Tradewide.

⁴⁶ See July 28, 2025, TRLED memorandum to the file containing the three emails in question.

⁴⁷ *Id.*

⁴⁸ See July 28, 2025, email from TRLED to USASourcing. In that email, TRLED noted that the deadline for voluntary submission of other factual information was August 25, 2025. *Id.*

⁴⁹ See July 29, 2025, email from USASourcing to TRLED.

⁵⁰ See July 31, 2025, email from TRLED to USASourcing.

⁵¹ *Id.*

shipment or shipments associated with one of the Importers. Each of these seven suppliers is discussed below.

Bestwood Timber

On May 20, 2025, CBP issued an RFI to Bestwood Timber via FEDEX, using an address that was associated with that firm that appeared on various sales documents and on the internet.⁵² FEDEX indicated that the recipient had moved to another address, and failed to deliver the package.⁵³ CBP obtained an alternative address associated with Bestwood Timber, and issued the RFI to Bestwood Timber via FEDEX to that address on May 29, 2025, with a deadline for response of June 12, 2025.⁵⁴ Bestwood Timber did not submit an RFI response by the deadline. On June 16, 2025, CBP again issued the RFI to Bestwood Timber via FEDEX, this time with a deadline of June 26, 2025.⁵⁵ Bestwood Timber again failed to submit an RFI response.

Zhejiang Sunzoom

On May 19, 2025, CBP issued an RFI to Zhejiang Sunzoom via email, with a deadline for response of June 2, 2025.⁵⁶ Zhejiang Sunzoom failed to submit a response by the deadline. On June 3, 2025, CBP emailed Zhejiang Sunzoom, providing the company with another opportunity to submit an RFI response, with a new deadline of June 10, 2025.⁵⁷ However, Zhejiang Sunzoom did not submit an RFI response.

Ningbo Wade

On May 19, 2025, CBP issued an RFI to Ningbo Wade via email, with a deadline for response of June 2, 2025.⁵⁸ Ningbo Wade failed to submit a response by the deadline. On June 3, 2025, CBP emailed Ningbo Wade, providing the company with another opportunity to submit an RFI response, with a new deadline of June 10, 2025.⁵⁹ Ningbo Wade requested an extension to the deadline,⁶⁰ and CBP extended the deadline to June 17, 2025.⁶¹ Ningbo Wade submitted an RFI response on June 17, 2025, but CBP rejected that response because Ningbo Wade failed to conform to filing requirements (*e.g.*, bracketing, proper business confidential and public

⁵² See FEDEX invoice for shipment to Bestwood Timber, dated May 20, 2025, and accompanying RFI.

⁵³ See FEDEX failure to deliver information to Bestwood Timber, dated June 2, 2025.

⁵⁴ See FEDEX invoice for shipment to Bestwood Timber, dated May 29, 2025, and accompanying RFI. FEDEX indicated the package was delivered on June 3, 2025. See June 3, 2025, FEDEX delivery information for Bestwood Timber package.

⁵⁵ See FEDEX invoice for shipment to Bestwood Timber, dated June 16, 2025, and accompanying RFI. We note that in one spot on the RFI, the deadline date was misstated as June 16, 2025, but elsewhere it was identified as June 26, 2025. FEDEX indicated the package was delivered on June 24, 2025. See June 24, 2025, FEDEX delivery information.

⁵⁶ See May 19, 2025, email from TRLED to Zhejiang Sunzoom, and accompanying RFI.

⁵⁷ See June 3, 2025, email from TRLED to Zhejiang Sunzoom.

⁵⁸ See May 19, 2025, email from TRLED to Ningbo Wade, and accompanying RFI.

⁵⁹ See June 3, 2025, email from TRLED to Ningbo Wade.

⁶⁰ See June 6, 2025, letter submitted on behalf of Ningbo Wade.

⁶¹ See June 6, 2025, email from TRLED granting Ningbo Wade extension of RFI deadline.

versions, certifications, etc.), did not answer the large majority of questions, and provided very little of the requested documentation. CBP also provided Ningbo Wade an additional opportunity to submit a proper RFI response, with a deadline of June 25, 2025.⁶² However, Ningbo Wade did not submit an RFI response.

Ningbo House

On May 19, 2025, CBP issued an RFI to Ningbo House via email, with a deadline for response of June 2, 2025.⁶³ On June 2, 2025, Ningbo Wade indicated in an email that it had “terminated all business engagements with USASOURCING INC effective **April 2023**,” that “{n}o commercial transactions have occurred since that date,” and that “{t}his concludes our statement on the matter.”⁶⁴ On June 3, 2025, CBP emailed Ningbo Wade, providing the company with another opportunity to submit an RFI response, with a new deadline of June 10, 2025.⁶⁵ On June 10, 2025, Ningbo House requested an extension of the deadline, and later that day, CBP extended the deadline to June 17, 2025.⁶⁶ Ningbo House submitted an RFI response on June 17, 2025, but CBP rejected that response because Ningbo House failed conform to filing requirements (e.g., bracketing, proper business confidential and public versions, certifications, etc.), did not answer any of the questions, and provided at most just a small portion of the requested documentation. CBP also provided Ningbo House an additional opportunity to submit a proper RFI response, with a deadline of June 25, 2025.⁶⁷ However, Ningbo House did not submit an RFI response.

Dongguan Tenghui

On May 20, 2025, CBP issued an RFI to Dongguan Tenghui via FEDEX, with a deadline for response of June 3, 2025.⁶⁸ Dongguan Tenghui did not submit an RFI response by the deadline. On June 6, 2025, CBP again issued the RFI to Dongguan Tenghui via FEDEX, this time with a deadline of June 16, 2025.⁶⁹ Dongguan Tenghui did not submit a response by the deadline, but did submit a response on June 17, 2025, and June 18, 2025. On June 20, 2025, CBP rejected that response because Dongguan Tenghui failed to conform to filing requirements (e.g., bracketing, proper business confidential and public versions, certifications, etc.), did not answer any of the

⁶² See June 18, 2025, email from TRLED to Ningbo Wade, rejecting original RFI response and providing an additional opportunity to submit an RFI response.

⁶³ See May 19, 2025, email from TRLED to Ningbo House, and accompanying RFI.

⁶⁴ See June 2, 2025, email from Ningbo House to TRLED.

⁶⁵ See June 3, 2025, email from TRLED to Ningbo House.

⁶⁶ See June 10, 2025, email exchange between TRLED and Ningbo House, with the former granting an extension to the RFI deadline of the latter.

⁶⁷ See June 18, 2025, email from TRLED to Ningbo House, rejecting original RFI response and providing an additional opportunity to submit an RFI response.

⁶⁸ See FEDEX invoice for shipment to Dongguan Tenghui, dated May 20, 2025, and accompanying RFI. FEDEX indicated the package was delivered on May 23, 2025. See May 23, 2025, FEDEX delivery information for Dongguan Tenghui package.

⁶⁹ See FEDEX invoice for shipment to Dongguan Tenghui, dated June 6, 2025, and accompanying RFI. FEDEX indicated the package was delivered on June 9, 2025. See June 9, 2025, FEDEX delivery information for Dongguan Tenghui package.

questions, and provided at most just a small portion of the requested documentation. CBP also provided Dongguan Tenghui an additional opportunity to submit a proper RFI response, with a deadline of June 27, 2025.⁷⁰ Dongguan Tenghui submitted emails to TRLED in Chinese characters, the latter of which appeared to request additional time for submission of the RFI response, and on June 24, 2025, CBP extended the deadline to June 30, 2025.⁷¹ However, Dongguan Tenghui did not submit an RFI response.

Meicheng Dongsheng

On May 20, 2025, CBP issued an RFI to Meicheng Dongsheng via FEDEX, using an address that was associated with that firm that appeared on various sales documents and on the internet.⁷² FEDEX indicated at first that the recipient had moved to another address, but then as of weeks later, still had the package.⁷³ CBP obtained an alternative address associated with Meicheng Dongsheng, and issued the RFI to Meicheng Dongsheng via FEDEX to that address on June 3, 2025, with a deadline for response of June 17, 2025.⁷⁴ Meicheng Dongsheng submitted an RFI response on June 16, 2025, but CBP rejected that response because Meicheng Dongsheng failed to conform to filing requirements (*e.g.*, bracketing, proper business confidential and public versions, certifications, etc.), did not answer many of the questions, and did not provide the requested documentation. CBP also provided Meicheng Dongsheng an additional opportunity to submit a proper RFI response, with a deadline of June 27, 2025.⁷⁵ However, Meicheng Dongsheng did not submit an RFI response.

Zhejiang Jinqi

On May 20, 2025, CBP issued an RFI to Zhejiang Jinqi via FEDEX, with a deadline for response of June 3, 2025.⁷⁶ Zhejiang Jinqi did not submit an RFI response by the deadline. On June 6, 2025, CBP again issued the RFI to Zhejiang Jinqi via FEDEX, this time with a deadline of June 16, 2025.⁷⁷ On June 13, 2025, Zhejiang Jinqi requested an extension of that deadline,⁷⁸ and on

⁷⁰ See June 20, 2025, email from TRLED to Dongguan Tenghui, rejecting original RFI response and providing an additional opportunity to submit an RFI response.

⁷¹ See email exchanges between TRLED and Dongguan Tenghui, concluding with the final email from TRLED dated June 24, 2025, granting an extension to the RFI response deadline for Dongguan Tenghui.

⁷² See FEDEX invoice for shipment to Meicheng Dongsheng, dated May 20, 2025, and accompanying RFI.

⁷³ See FEDEX failure to deliver information to Meicheng Dongsheng, dated June 20, 2025, containing FEDEX information as of May 23, 2025, and as of May 28, 2025.

⁷⁴ See FEDEX invoice for shipment to Meicheng Dongsheng, dated June 3, 2025, and accompanying RFI. FEDEX indicated the package was delivered on June 6, 2025. See June 6, 2025, FEDEX delivery information for Meicheng Dongsheng package.

⁷⁵ See June 20, 2025, email from TRLED to Meicheng Dongsheng, rejecting original RFI response and providing an additional opportunity to submit an RFI response.

⁷⁶ See FEDEX invoice for shipment to Zhejiang Jinqi, dated May 20, 2025, and accompanying RFI. FEDEX indicated the package was delivered on May 23, 2025. See May 23, 2025, FEDEX delivery information for Zhejiang Jinqi package.

⁷⁷ See FEDEX invoice for shipment to Zhejiang Jinqi, dated June 6, 2025, and accompanying RFI. FEDEX indicated the package was delivered on June 9, 2025. See June 9, 2025, FEDEX delivery information for Zhejiang Jinqi package.

⁷⁸ See Zhejiang Jinqi RFI deadline extension request, dated June 13, 2025.

that same day, CBP extended the deadline to June 23, 2025.⁷⁹ On June 23, 2025, Zhejiang Jinqi requested an additional extension of the deadline,⁸⁰ and on that same day, CBP extended the deadline to June 25, 2025.⁸¹

On June 25, 2025, Zhejiang Jinqi submitted its RFI response. Based solely on terminology in the narrative and attached exhibits, it is not evident what products would constitute “wooden bedroom furniture” with respect to the AD order, and which would not. What the company identified as a “product catalog” contains photographs of some products that would appear to be “wooden bedroom furniture” (*e.g.*, beds), and at least some that would not (*e.g.*, sofas).⁸²

Voluntary Submissions of New Factual Information

No party to the investigation made voluntary submissions of new factual information subsequent to the issuance of the NOI.

Written Arguments

On September 22, 2025, the Alleger submitted written arguments.⁸³ The Alleger states that “{s}ince initiation, USASourcing and Tradewide (as well as their Chinese suppliers) have repeatedly refused to cooperate by not responding to CBP’s various requests for information (‘RFIs’),” and, “{a}ccordingly, CBP should apply adverse inferences pursuant to 19 C.F.R. § 165.6 in reaching an affirmative final determination that both USASourcing and Tradewide entered covered merchandise through evasion.”⁸⁴ The Alleger notes that the Importers were given multiple opportunities to respond to RFIs after the issuance of the NOI, but failed to do so.⁸⁵ The Alleger states “{b}oth USASourcing and Tradewide (as well as their Chinese suppliers) failed to cooperate to the best of their ability, because they did not respond to CBP’s RFIs,” and, “{a}ccordingly, CBP should apply adverse inferences in reaching an affirmative final determination that both USASourcing and Tradewide entered covered merchandise through evasion.”⁸⁶ Neither importer submitted written arguments, nor did either submit a response to the written arguments of the Alleger.

⁷⁹ See June 13, 2025, email from TRLED to Zhejiang Jinqi extending the RFI deadline for that firm.

⁸⁰ See Zhejiang Jinqi RFI deadline extension request, dated June 23, 2025.

⁸¹ See June 23, 2025, email from TRLED to Zhejiang Jinqi extending the RFI deadline for that firm.

⁸² See June 25, 2025, RFI response of Zhejiang Jinqi at Exhibit IV-6. Note that this “product catalog” appears to be a general company brochure that happens to contain photographs of various items, including one page with two subheadings, “Main Products” (over a photograph of a bed) and “Loose Furniture” (over photographs of a chair, a sofa, assorted tables, an armoire, and benches. *Id.*

⁸³ See “Investigations of USASOURCING and TRADEWIDE / Submission of Written Arguments of the American Furniture Manufacturers Committee for Legal Trade,” dated September 22, 2025 (“Alleger Written Arguments”).

⁸⁴ *Id.*

⁸⁵ *Id.* at 2 (page 7 of PDF document).

⁸⁶ *Id.* at 3 (page 8 of PDF document).

Analysis

Under 19 U.S.C. § 1517(c)(1)(A), to reach a final determination as to evasion, CBP must “make a determination, based on substantial evidence, with respect to whether such covered merchandise entered into the customs territory of the United States through evasion.” Evasion is defined as “the entry of covered merchandise into the customs territory of the United States for consumption by means of any document or electronically transmitted data or information, written or oral statement, or act that is material and false, or any omission that is material and that results in any cash deposit or other security of any amount of applicable antidumping or countervailing duties being reduced or not being applied with respect to the merchandise.”⁸⁷ As discussed in this determination and in the NOI, the record of this investigation contains evidence that wooden bedroom furniture subject to the *Order* was entered by the Importers into the United States through evasion, resulting in the avoidance of applicable AD cash deposits or other security as a result of misclassification of the merchandise. Based on that evidence, and the application of adverse inferences as a result of the failure of the Importers and many of their suppliers to cooperate in the investigation, CBP concludes there is substantial evidence of evasion.

Pursuant to 19 U.S.C. §1517(c)(3) and 19 C.F.R. 165.6(a), CBP may apply an adverse inference if the party to the investigation that filed an allegation, the importer, or the foreign producer or exporter of the covered merchandise fails to cooperate and comply to the best of its ability with an RFI made by CBP. In applying an adverse inference against an eligible party, CBP may use the facts otherwise available to make a final determination as to evasion pursuant to 19 U.S.C. § 1517(c)(1)(A) and 19 C.F.R. 165.27. Moreover, an adverse inference may be used with respect to U.S. importers, foreign producers, and manufacturers “without regard to whether another person involved in the same transaction or transactions under examination has provided the information sought....” *See* 19 U.S.C. § 1517(c)(3)(B).

The evidence on the administrative record amounts to substantial evidence of evasion by misclassification, based on adverse inferences drawn and the evidence in the record. Because neither USASourcing nor Tradewide submitted an RFI response, despite having been given multiple opportunities to submit such a response, CBP’s ability to obtain information for its investigation was impeded significantly. Due to this repeated failure, CBP finds that the Importers have not cooperated and complied to the best of their ability with CBP during the underlying investigation.⁸⁸ The RFIs issued to the Importers and their suppliers included questions and requests for documentation relating to the Importers’ purchases and resales, as well as requests for other information relating to relationships and business interactions between the parties in question that could relate to proper product classification as well as other possible types of evasion. Accordingly, CBP is drawing inferences adverse to the Importers from the information submitted to CBP in the Allegation and other information obtained during CBP’s

⁸⁷ *See* 19 CFR 165.1; *see also* 19 USC 1517(a)(5)(A).

⁸⁸ Note also that an adverse inference may be used with respect to the two suppliers of Tradewide and four of the five suppliers of USASourcing which also did not cooperate to the best of their abilities, all of which failed to submit acceptable RFI responses, as discussed above.

investigation.⁸⁹

In addition to drawing an adverse inference due to the Importers' and their suppliers' failures to cooperate in the investigation, CBP is relying on evidence referenced in the NOI, as noted above. Evidence provided by the Alleger and supported by information CBP identified in its own systems, indicates both USASourcing and Tradewide were importing wooden furniture from China, with descriptions indicating at least some of it might be classified as WBF. [person], during the aforementioned [action and place], observed WBF that was linked to specific shipments of such merchandise to [company name] that were identified in commercial shipment data under what appears to be the incorrect HTSUS classification and with incorrect or misleading product descriptions. Prior to the NOI, Tradewide failed to provide a response to CBP's CF28, and while USASourcing did provide a response to its CF28, it failed to provide responses to CBP's supplemental questions following its initial CF28 responses, questions which requested information that would allow CBP to obtain a clear idea of what was actually imported into the United States (*i.e.*, requested customer designs and blueprints of the imported merchandise, and sales and transportation documentation for sales of its imported merchandise to its own customers). Also, documents in two of USASourcing's CF28 responses refer to "[name]" projects, an entity, as noted, associated with misclassified merchandise that were actually WBF.

Determination as to Evasion

Based on the totality of information contained in the administrative record, as referenced in the NOI and the Importers and their suppliers' subsequent failure to respond to the RFIs, CBP determines there is substantial evidence that the Importers evaded the *Order* by importing wooden bedroom furniture of Chinese origin into the United States but failing to declare it as subject to the Order, thereby avoiding the antidumping duties applicable to such merchandise.

⁸⁹ See 19 USC 1517(c)(3)(B)-(C); *see also* 19 CFR 165.6(c); *see also* Initiation Memo and NOI.

Actions Taken Pursuant to the Affirmative Determination as to Evasion

In consideration of CBP's determination that substantial evidence demonstrates that the Importers entered covered merchandise into the customs territory of the United States through evasion, and pursuant to 19 U.S.C. § 1517(d) and 19 CFR 165.28, CBP will suspend or continue to suspend the entries covered by this investigation, until instructed to liquidate. Such entries include those identified at time of entry with China as country of origin and/or country of export that also entered under either the HTSUS tariff classification numbers that have been associated with the scope of the AD Order, or under the tariff classification number the Allegor stated is not typically associated with merchandise covered by the AD Order (*i.e.*, HTSUS 9403.60). For such entries, CBP will continue to consider those entries as type 03 and continue to suspend them until instructed to liquidate those AD entries.⁹⁰ CBP may also evaluate the Importers' continuous bonds in accordance with CBP's policies. None of the above actions precludes CBP or other agencies from pursuing additional enforcement actions or penalties.

Sincerely,



Victoria Cho
Director
Enforcement Operations Division
Trade Remedy Law Enforcement Directorate
CBP Office of Trade

⁹⁰ We do not include the USASourcing entry with entry number [number]7346 as subject to this final determination, because, as noted above, CBP stated explicitly, following a cargo exam, that none of the merchandise associated with the entry appeared to be classifiable as wooden bedroom furniture.